

CONFIDENTIALITY AGREEMENT

THIS CONFIDENTIALITY AGREEMENT (“**Agreement**”) is executed on this the [14th...] day of [November month...] 2023 (“**Effective Date**”) by and between

Details of the Intern : Name: Sagar Choudhury, Roll No: 210310007045, College/University: Girijananda Chowdhury Institute of Management and Technology, Azara, GHY-17,

Department: Computer Science and Engineering, Semester: 5th

and **Dr. Prithwijit Guha (Associate Professor, Dept. of EEE, IIT Guwahati)** wherever the context so requires, be hereinafter jointly referred to as Parties and individually as Party.

WHEREAS:

The Parties are interested in discussing and exploring a potential future relationship between them and accordingly the Parties wish to exchange information (hereinafter referred to as the “**Confidential Information**”) on the terms and conditions set out in this Agreement.

The Parties hereto acknowledge that certain information and documentation provided by each one to the other or by their respective advisors in connection with Two set of Videos of Specific Sentences each

containing 50 videos (Speaker ID: S210, SET 4), Final Project: Stock Price Prediction using Sentimental Analysis (hereinafter called the “**Permitted Purpose**”) and discussions carried out in connection therewith (such discussions, information and documentation, in whatever form), is of a confidential nature.

For the purposes of this Agreement, the Party receiving Confidential Information shall be referred to as the “**Receiving Party**” and the Party disclosing such Confidential Information shall be referred to as the “**Disclosing Party**”.

NOW THEREFORE, in consideration of the mutual promises and covenants contained herein and other good and valuable consideration the sufficiency and adequacy of which is hereby acknowledged by both the Parties, the Parties mutually agree as follows:

1. **Confidential Information** means any and all information and material, including without limitation any technique, strategy, component, concept, program, report, study, documentation, information, manual, record, data, technology, product, plan, design, procedure, method, invention, sample, notes, summaries, analyses, compilations and other writings, cell lines and procedures and formulations for producing any such sample, medium, and / or cell line, process, formula or test data relating to any research project, work in progress, future development, engineering, personnel matter, its present or future products, or any other information which the Disclosing Party provides to the Receiving Party whether in oral, written, graphic or electronic form.
2. The Receiving Party shall hold the Confidential Information disclosed to it in confidence and shall use the same level of care, which shall be at least a reasonable standard of care, to prevent

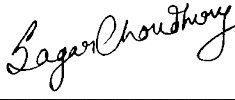
any unauthorised use or disclosure of such Confidential Information as it exercises in protecting its own Confidential Information of a similar nature. Confidential Information disclosed hereunder shall at all times remain the property of the Disclosing Party.

3. The Receiving Party shall not, without the prior written consent of the Disclosing Party, make use of the Confidential Information disclosed to it other than for the Permitted Purpose, nor disclose the Confidential Information to any third party. Receiving Party shall be responsible for any breach of this agreement.
4. The confidentiality and non-use obligations of this Agreement shall not apply to:
 - a. Confidential Information which at the time of disclosure hereunder is in the public domain; or
 - b. Confidential Information which, after its disclosure hereunder, becomes part of the public domain by publication or otherwise, except in breach of this Agreement.
5. Receiving Party shall not make any oral or written release of any statement, information, advertisement or publicity in connection with this Agreement which uses the Disclosing Party's name, symbols, or trademarks without the Disclosing Party's prior written approval. The obligations of this Clause shall survive termination of this Agreement.
6. *The Parties understand and agree that monetary damages may not be sufficient remedy for breach of this Agreement and that the Disclosing Party will be entitled to seek equitable relief, including injunction and specific performance, for any such breach. Nothing contained in this Agreement shall be construed as limiting the Disclosing Party's right to any other remedies it may have at law, including, without limitation, the recovery of damages for breach of this Agreement.*
7. Receiving Party shall not assign all or any part of its rights and obligations under this Agreement without Disclosing Party's prior written consent.
8. *If any provision of this Agreement shall be declared invalid, unenforceable or illegal, such invalidity, unenforceability or illegality shall not prejudice or affect the validity, enforceability or legality of the remaining provisions of the Agreement.*
9. This Agreement shall come into effect on the Effective Date as set out above shall terminate after either (i) dataset is publicly made available, (ii) publication of the dataset, whichever of the aforementioned events occurs earlier.
10. Upon completion of the Permitted Purpose or at any time upon written request of the Disclosing Party the Receiving Party undertakes to:
 - i. immediately discontinue use of the Confidential Information disclosed to it.
 - ii. within ten (10) business days, return to the Disclosing Party or destroy all Confidential Information within its possession, to be returned to Disclosing Party or destroyed except that each Party shall be permitted to retain one copy of the other Party's Confidential Information so that any continuing legal obligations may be determined;
 - iii. if requested in writing by Disclosing Party, then the Receiving Party shall inform in writing to the Disclosing Party that it has taken all actions described in the foregoing subsections and provide such document to that effect to the Disclosing Party within Ten (10) business days following the Disclosing Party's demand.
11. This Agreement and any disputes or claims arising out of, or in connection with, its subject matter shall be governed by and construed in accordance with the laws of India. The parties irrevocably agree that the courts of Guwahati have exclusive jurisdiction to settle any dispute or claim that arises out of or in connection with this Agreement.

12. This Agreement may be executed in multiple counterparts, each of which shall be considered and shall have the force and effect of an original. Any modification of the agreement shall only be in writing.

IN WITNESS WHEREOF the duly authorized representatives of the parties have executed this Agreement on the date first above written.

Receiving Party

Signature: 

Name: SAGAR CHOUDHURY

Designation: STUDENT

Email : sagarchoudhury234@gmail.com

Phone Number : 9101828428

Date: 14th November 2023

Disclosing Party

Signature: _____

Name: _____

Designation: _____

Email : _____

Phone Number : _____

Date: _____